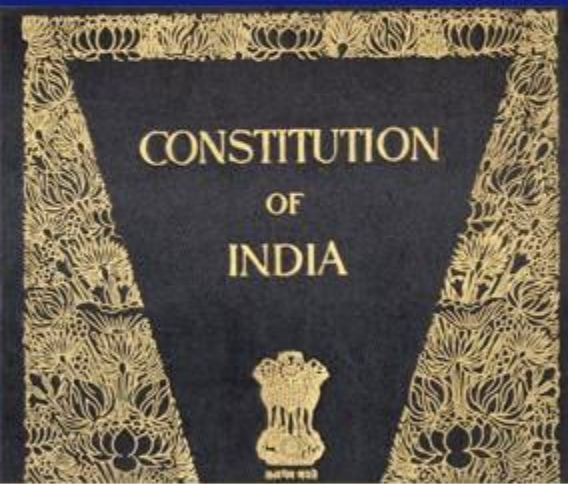


INDIAN POLITY



MODULE - 7

**GOVERNMENT OF INDIA ACT
OF 1919**

THE GOVERNMENT OF INDIA ACT OF 1919



CHELMSFORD



MONTAGU

- 1 The British Government charted this Act to further expand the participation of Indians in the Government of India.
- 2 The Act was recommended by Edwin Montagu (Secretary of State for India) and Lord Chelmsford (Viceroy and Governor General of India).
- 3 Hence this Act was also known as the Montagu-Chelmsford Reforms or simply Montford Reforms.
- 4 The most notable feature of the act was “end of benevolent despotism” and introduction of responsible Government in India.

THE GOVERNMENT OF INDIA ACT OF 1919

BACKGROUND OF THE ACT



- 1 On 20 August 1917, Montagu made a historic declaration in the British House of Commons in British Parliament which is called as “**Montague declaration**”.
- 2 The theme of the declaration was increasing the association of Indians in every branch of the administration and **gradual development of self-governing institutions**.

THE GOVERNMENT OF INDIA ACT OF 1919

OBJECTIVES OF THE ACT

- 1 India to remain as an integral part of British Empire.
- 2 Gradual decentralization of authority with loosening the supreme hold of the Central Government. Thus, this act suggested for a decentralized Government.
- 3 The time and the manner towards the goal of responsible government to be decided by the British Parliament.
- 4 Partial responsibility in the provinces, but no change in character of the Central Government.

THE GOVERNMENT OF INDIA ACT OF 1919

FEATURES OF THE ACT

- 1 It relaxed the Central control over the provinces by demarcating and separating the Central and Provincial subjects.
- 2 The Central and Provincial legislatures were authorized to make the laws on their respective list of subjects. However, the structure of the Government continued to be centralized and unitary.
- 3 It introduced dyarchy for Provincial Governments. The subjects of the Provincial Governments were divided into two categories – Reserved and Transferred.
- 4 The transferred subjects were administered by the Governor with the aid of the ministers responsible to the Legislative Council.
- 5 The reserved subjects on the other hand were to be administered by the Governor and his executive council without being responsible to the legislative council.
- 6 This dual scheme of governance was known as dyarchy, which means double rule. However, this experiment was largely unsuccessful.

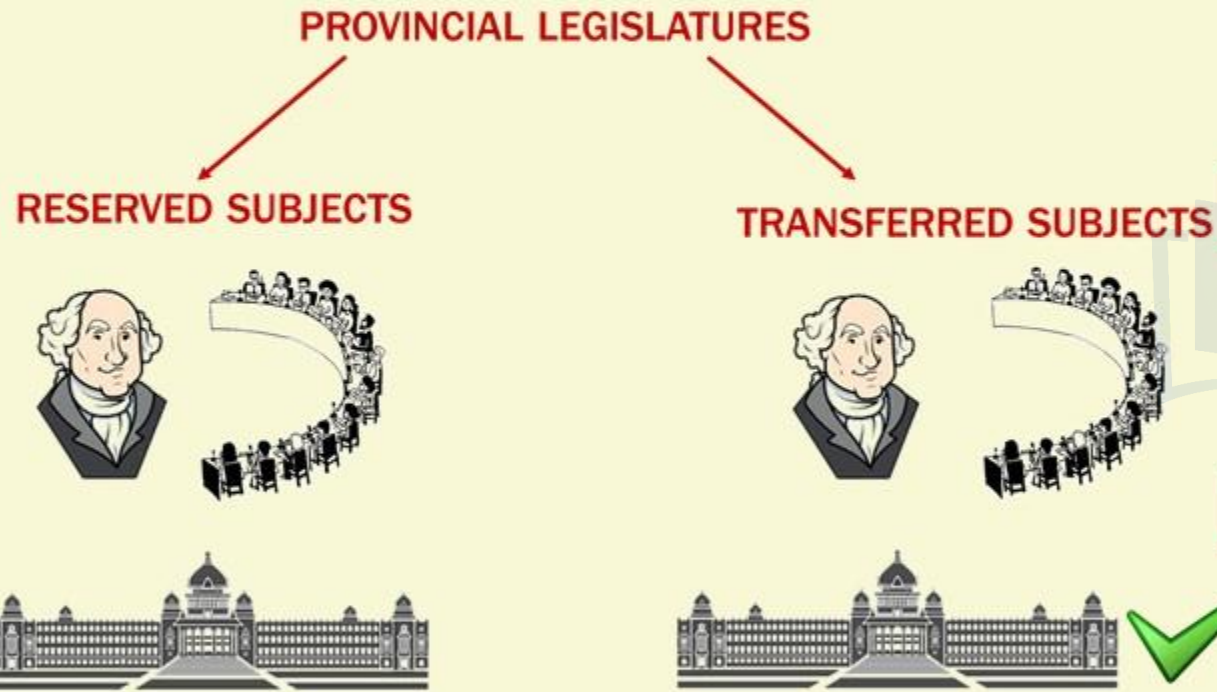
PROVINCIAL LEGISLATURES

RESERVED SUBJECTS

TRANSFERRED SUBJECTS



MORE ON “DYARCHY”...



1 Dyarchy was a gradual transition from irresponsible to responsible Government and thus provincial subjects were divided into reserved and transferred subjects.

2 The members in control of the reserved subjects be made responsible to the British Parliament through Secretary of State.

3 Subjects which were considered of key importance like maintaining peace and order in the State were classified as reserved. While the subjects in which there was more local interest were treated as transferred.

THE GOVERNMENT OF INDIA ACT OF 1919

FEATURES OF THE ACT



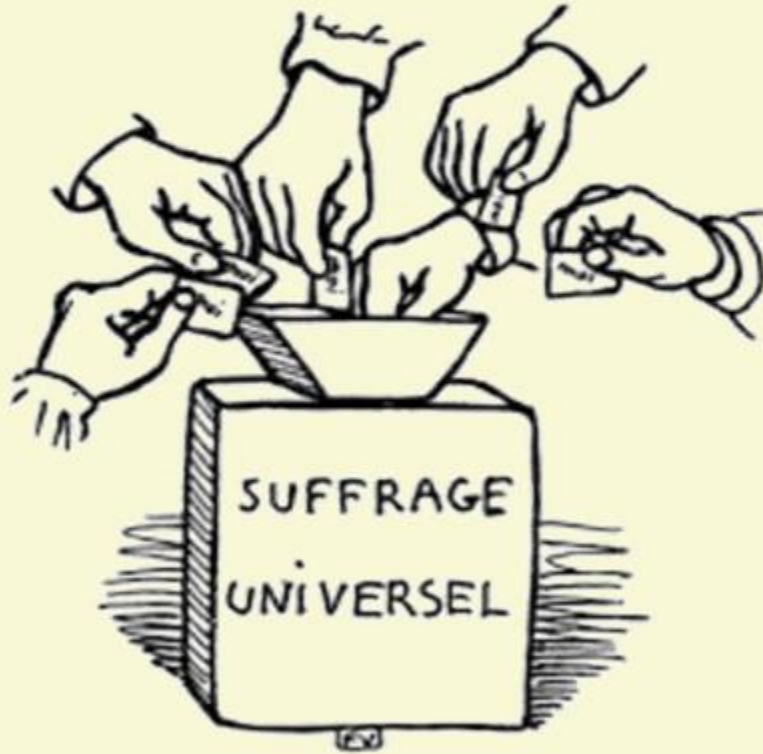
7 It introduced for the first time **Bicameralism in the Centre**. Thus, the Indian Legislative Council was replaced by the Bicameral Legislature consisting of an upper house (Council of State) and lower house (Legislative Assembly).

8 It introduced for the first time the **concept of direct elections in the country**. The majority of members of the both house were chosen by direct elections.

9 It extended the **principle of communal representation by providing separate electorates** for Sikhs, Christians, Anglo Indians and Europeans.

THE GOVERNMENT OF INDIA ACT OF 1919

FEATURES OF THE ACT



10 It requires that three of the six members of the Viceroy's Executive Council were to be Indians.

11 It granted franchise to limited number of people on the basis of property, tax or education.

12 There was no Universal Franchise and Adult Suffrage. The qualification were very restrictive in nature.

THE GOVERNMENT OF INDIA ACT OF 1919

FEATURES OF THE ACT



14 It created a new office of the High Commissioner for India in London and transferred to them some of the functions, which were previously performed by the Secretary of State for India.

15 It provided for the establishment of a Public Service Commission. Hence a Central Public Service Commission was established in the year of 1926 for recruiting Civil servants.

16 This was done on the recommendations of Lee Commission on Superior Civil Services in India.

THE GOVERNMENT OF INDIA ACT OF 1919

FEATURES OF THE ACT



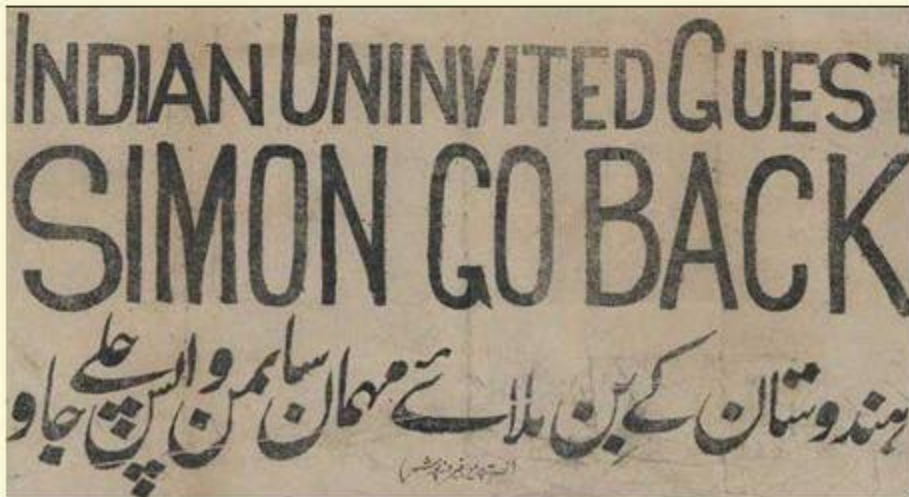
16 It separated for the first time provincial budget from the Central budget and authorize the provincial legislatures to enact their own budgets.

17 The Budget was to be divided into two categories- **votable and non-votable**.

18 Here the votable items covered only one-third of the total expenditure and even in this sphere the Governor General was empowered to refuse or grant any funds.

THE GOVERNMENT OF INDIA ACT OF 1919

FEATURES OF THE ACT



18 It provided for the appointment of **statutory commission** to enquire into and report on its working after ten years of coming into force.

19 The Simon commission which was established in the year of 1927 was an outcome of this provision.

THE HISTORY BEHIND SIMON COMMISSION

- On November, 1927, the British Government announced the appointment of a **seven member Statutory Commission under the Chairmanship of Sir John Simon** to report on the condition of India under its new Constitution.
- However, all the parties boycotted this Commission because all the members of the Commission were British.
- The Commission submitted its report in 1930 and recommended the **abolition of Dyarchy, extension of the responsible Government** in the Provinces and **establishment of a federation** of British India and Princely States.
- To consider the proposals of this commission three round table conferences were held with representatives of the British Government, British India and Indian Princely States.
- On the basis of these discussions, a White paper on Constitutional reforms was prepared and the recommendations were incorporated in the Government of India Act of 1935.

THE GOVERNMENT OF INDIA ACT OF 1919

ANALYSIS OF THE ACT

1 This Act intended to give responsible Government by the form of creation of Dyarchy in the provinces.

2 However, the introduction of Diarchy in the provinces was too complicated and it proved to be a failure as well. The provinces got power by way of delegation from the Centre(paramount power).

3 It extended and consolidated communal representation.

4 Though it provided direct elections the franchise is very limited and did not extend to common man.

5 The Governor Generals and Governors had a lot of power to undermine the legislatures at the Centre and the provinces respectively.

THE GOVERNMENT OF INDIA ACT OF 1919

ANALYSIS OF THE ACT

- 5 Though the objective of the act was to move towards responsible Government, in reality there was an **absence of responsible Government at the Centre.**
- 6 However, there was some merits with this Act as well. It marked the end of the **policy of Benevolent Despotism.**
- 7 It introduced **some form of elections and it created political consciousness amongst the people of India.**
- 8 Another positive of the Act was that it **introduced bicameral legislature.**
- 9 There was increased participation of Indians in the administration. The **number of Indians in Viceroy's Executive Council** was raised to three and these Indians were invested with the some of the important portfolios like Health and Industry and Labour.

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